

24VECV01863 24VECV01863

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV01863 Hearing Date: July 21, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

David Burgess,

Plaintiff.

v.

Casa De Cadillac, et al.

Defendants.

Case Number Department

24VECV01863 107

COURT'S [TENTATIVE]
ORDER RE:

Motion for Attorneys' Fees

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant request for fees in the reduced sum of \$16,962.00; (2) Deny request for costs.

I.

BACKGROUND

On May 9, 2018, Plaintiff David Burgess ("Plaintiff") entered into a warranty contract with Defendant General Motors LLC ("Defendant") regarding a 2018 Cadillac XT5 Crossover (the "Vehicle"). (Complaint ¶¶ 3, 28.) The Vehicle was defective. (Complaint ¶¶ 28-29.)

On April 23, 2024, Plaintiff filed a complaint against Defendant, Casa De Cadillac dba Casa Automotive Group, and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; and (3) negligent repair.

On March 9, 2026, Plaintiff filed a notice of settlement of entire case.

On May 7, 2026, Plaintiff filed a motion for attorneys' fees (the "Motion"). On May 19, 2026, Defendant filed an opposition. On July 14, 2026, Plaintiff filed a reply.

II.

REQUESTS

FOR JUDICIAL NOTICE

Plaintiff requests the court take judicial notice of two superior court orders approving Plaintiff's counsels' billing rates. (Request for Judicial Notice p. 2.)

The court may decline to take judicial notice of materials that are not "necessary, helpful, or relevant." (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 748, fn. 6.) The referenced orders are not necessary, helpful, or relevant to the court's ruling on this matter. Plaintiff's requests are denied.

III.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred

– both from the standpoint of time spent and the amount charged." (Robertson v. Fleetwood Travel Trailers of California, Inc. ("Robertson") (2006) 144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden

of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Id. at pp. 817-818.)

"The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court." (Id. at p. 822.)

"[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]" (Robertson, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone

figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Id.

at p. 819.) However, a trial court is “not required to apply a multiplier.” (Id. at p. 822, original italics.)

IV.

DISCUSSION

Plaintiff

moves for an order awarding Plaintiff attorneys’ fees and costs in the sum of \$32,783.23. (Motion p. 2.) This reflects \$21,365.50 in attorneys’ fees, a 1.30 multiplier increasing the award to \$27,775.15, \$2,275.00 for reviewing the opposition, drafting the reply, and appearing at the Motion’s hearing, and \$2,733.08 in litigation costs. (Motion p. 2.)

Hourly

Rates:

Plaintiff’s

counsels and supporting staff billed at rates ranging from \$200.00 per hour to \$600.00 per hour. (Motion pp. 12-13.) Plaintiff’s counsel, Logan Hensley, submits a declaration discussing counsels’ relevant experience. (Hensley Declaration ¶ 11.) Hensley also discusses the supporting staff’s experience, with the exception of Case Manager Walter Orellana. (Hensley Declaration ¶ 11.)

The court finds the

requested hourly rates are reasonable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.])

Time

Billed:

Plaintiff’s

counsels and supporting staff billed 64.20 hours on this matter and anticipate billing additional time relating to the opposition, the reply, and the Motion’s hearing. (Motion pp. 14, 2.)

In

opposition, Defendant argues counsels billed excessively and using 12 timekeepers on this matter was unnecessary. (Opposition pp. 8-11.)

Specifically, Defendant argues the court should reduce time billed for set one discovery requests and a PMQ notice of deposition that Defendant did not receive, a motion to compel Defendant's PMQ that was never filed with the court, and for drafting a first amended complaint that Defendant has no record of receiving and was not filed with the court. (Opposition pp. 5-6, 8.)

The

court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a lack

of efficiency in litigating the case and a lack of clarity in tasks performed."

(See Mikhaeilpoor v. BMW of North America, LLC (2020) 48

Cal.App.5th 240 256 ["Further, counsel's billing entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed.

This evidence supports the trial court's finding that plaintiff's counsel failed to act efficiently."]) Plaintiff's counsels are experienced in this area of the law. Thus, the court will adjust the reflected time to reflect the court's understanding that the time billed should reflect Plaintiff's counsels' expertise.

The court will also

adjust the requested time to reflect that Defendant received no discovery requests or PMQ notice of deposition and no motion to compel Defendant's PMQ or first amended complaint were filed with the court.

Further, on January

26, 2026, Virginia Walls billed 1.00 hours for "Receipt & review of::

Minute Order re Continuation of dates; Calendared cont'd trial, fsc, and PSMC."

(Hensley Declaration pdf pp. 27-28.) The court's Minute Order from January 26, 2026, is substantively just a few sentences long. (01/26/26 Minute Order.) It is unreasonable and highly excessive for Walls to have billed one hour for reviewing the order.

Finally, the court is

concerned about Plaintiff's counsels and staff billing for internal correspondence and a team meeting. Although Plaintiff's counsels are free to use multiple counsels and staff, that cannot result in excessive billing.

Date

Task

Hours

Requested

Adjusted

Hours

Hourly

Rate

04/22/26

Review

File: Conduct audit of all billable entries; cross-reference for accuracy

0.60

0.20

\$500.00

04/22/26

Draft:

Draft [Proposed] Order re: Motion for Attorney Fees

0.20

0.10

\$500.00

04/22/26

Draft:

Draft Request for Judicial Notice in support of Motion for Attorney Fees

0.40

0.10

\$500.00

04/22/26

Draft:

Draft Declaration of Logan Hensley in support of Motion for Attorney Fees;
create and compile all exhibits thereto

1.30

0.50

\$500.00

04/22/26

Draft:

Draft Motion for Attorney Fees; draft Notice of Motion and Memorandum of
Points and Authorities

2.80

1.50

\$500.00

04/17/26

Internal

Correspondence:: Sent email internally re distribution form.

0.10

0.00

\$200.00

03/30/26

Review

File: Conduct audit of billing entries and costs for matter

0.40

0.20

\$500.00

03/05/26

Draft:

Draft Motion to Compel Deposition of GM's PMQ

1.40

0.00

\$500.00

03/03/26

Review

File: Reviewed file during calendar meeting with Logan Hensley and Virginia Walls.

0.10

0.00

\$200.00

02/25/26

Draft:

Preliminary drafting of Motion to Compel PMQ Deposition

0.50

0.00

\$500.00

02/23/26

review
calendar; review deadlines and events on calendar

0.20

0.00

\$250.00

02/23/26

review
calendar; review deadlines and events on calendar.

0.20

0.00

\$250.00

02/16/26

Review
File: Reviewed file during calendar meeting with Logan Hensley and Virginia Walls.

0.20

0.00

\$200.00

01/26/26

Receipt

& review of:: Minute Order re Continuation of dates; Calendared cont'd trial, fsc, and PSMC.

1.00

0.10

\$250.00

01/20/26

Depo

Prep:: Review status of PMQ Deposition Request; internal correspondence regarding the same; prepare for further motion to compel re PMQ appearance

0.50

0.20

\$500.00

01/12/26

Review

File: and client email; review communications with Def and prelitigation offer.

0.30

0.10

\$250.00

01/08/26

Review

File: Analyze and review case status

0.30

0.00

\$500.00

12/01/25

Review

File: Reviewed file during calendar meeting with LH & VW.

0.10

0.00

\$200.00

11/10/25

Internal

Correspondence:: Internal correspondence re Notice of Deposition of PMQ

0.20

0.00

\$500.00

11/10/25

Internal

Correspondence:: Internal correspondence re Discovery Demands

0.20

0.00

\$500.00

05/15/25

follow

up with atty re drafts of for mtn for leave.

0.20

0.00

\$250.00

05/12/25

follow

up with atty re drafts of for mtn for leave.

0.20

0.00

\$250.00

05/09/25

review

drafts of Motion for leave. fwd to atty for review

0.40

0.00

\$250.00

03/27/25

Review

File: Reviewed and sent Mx for Leave and supporting documents to current team.

0.20

0.00

\$270.00

03/18/25

Receipt

& review of:: OneLegal Invoice, case updated

0.10

0.00

\$270.00

03/14/25

Call

to/from Client: Introduction: Called client to introduce myself.

0.10

0.00

\$200.00

03/11/25

Reassigned

case to Logan Hensley.

0.20

0.00

\$225.00

01/23/25

Revise::

Reviewed and marked FAC changes, sent to LG for review.

0.60

0.00

\$270.00

01/22/25

Internal

Correspondence:: Info sent to handling attorney

0.20

0.00

\$270.00

01/14/25

Reassigned

case to LG and updated calendar events & deadlines

0.20

0.00

\$225.00

10/08/24;

09/24/24; 09/17/24; 09/11/24; 09/06/24; 09/03/24; 08/27/24; 08/24/24;

08/22/24;

Emails

to/from Client

1.80

0.50

\$200.00

08/22/24

Receipt

& review of:: CMC Outcome, case updated with trial and related deadlines

0.40

0.10

\$270.00

08/21/24

Review

File: and update calendar events, deadlines and reminders for new handling attorney.

0.20

0.00

\$250.00

08/20/24

Added

responsible attorney to file.

0.10

0.00

\$225.00

08/19/24

Call

to/from Client: Went over details.

0.40

0.10

\$200.00

08/19/24

Email

to/from Client: Requested info.

0.20

0.10

\$200.00

08/19/24

Call

to/from Client: Left VM.

0.20

0.10

\$200.00

08/15/24

Provided

information to BD re CMC, Email to team

0.50

0.10

\$270.00

08/02/24

Call

to/from Client: Left VM.

0.20

0.10

\$200.00

07/30/24

Call

to/from Client: Left VM.

0.20

0.10

\$200.00

07/30/24

Call

to/from Client: Left VM.

0.20

0.10

\$200.00

07/18/24

Draft:

Disco shells drafted. Case updated

3.00

0.00

\$200.00

06/17/24

Team
meeting

2.00

0.00

\$270.00

(Hensley
Declaration Ex. B pdf pp. 18-50.)

The
adjustments above reflect a reduction of \$5,903.50 in the requested fees.

The
court finds the reasonable number of hours expended on this matter, not including time billed for the opposition, reply, and hearing, was 45.7 hours, at the requested hourly rates.

The
court will further grant fees in the sum of \$1,500.00, reflecting 1.0 hour to review the opposition, 1.0 to draft the reply, and 1.0 hour to appear at the Motion's hearing, at \$500.00 per hour.

Lodestar
Multiplier:

Plaintiff
requests a 1.30 lodestar multiplier. (Motion p. 2.)

The court understands
that litigating Song-Beverly actions requires technical expertise. But "a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that

would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) Here, Plaintiff's counsels displayed the skill, proficiency, and technical expertise commensurate with counsels' experience and specialty. Nothing before the court indicates Plaintiff's counsels' representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels' rates.

Accordingly, the court denies Plaintiff's request for an enhancement.

Costs:

Plaintiff requests

\$2,733.08 in litigation costs. (Motion p. 2.) Plaintiff states these costs "are further detailed in the concurrently-filed Memorandum of Costs." (Motion p. 2.)

In opposition,

Defendant argues the court should deny Plaintiff's request for costs because Plaintiff failed to file a memorandum of costs and provided no evidence supporting the claimed costs. (Opposition p. 15.)

In reply, Plaintiff

argues the court should not deny their request for costs simply because no Memorandum of Costs was filed with the court because Plaintiff is entitled to costs and "Defendant does not identify a single specific cost item as unnecessary, duplicative, or unrelated to this litigation." (Reply pp. 13-14.)

California Rules of

Court, rule 3.1700(a)(1) states:

A prevailing party who

claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the

case.

Plaintiff filed no
memorandum of costs with the court. Thus, the request for costs is denied.

V.

CONCLUSION

For the foregoing
reasons, the request for attorneys' fees is granted in the reduced sum of \$16,962.00,
to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this
order. The request for costs is denied.

Dated: July 21, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court